

Line 6

Case Name: *Bank of America, N.A. v. Anthony Snyder*

Case No.: 24CV444941

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Bank of America, N.A. (“Plaintiff”) moves under Code of Civil Procedure Section 664.6 for an Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment against Defendant Anthony Snyder (“Defendant”) pursuant to Stipulation of the parties. Notice of Motion (the “Motion”) at 1:26-2:2 (filed: Dec. 22, 2025).

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

BACKGROUND

This is a straightforward matter.

Plaintiff and Defendant knowingly, voluntarily, and intelligently signed and filed in this action on November 13, 2024 a written settlement stipulation agreement, in which they expressly agreed that the Court would retain jurisdiction under Code of Civil Procedure Section 664.6 to enforce the terms of that settlement agreement (the “November 13, 2024 Settlement Agreement”). In this November 13, 2024 Settlement Agreement, the parties agreed, among other things, that:

- Defendant Snyder stipulates to the entry of judgment in favor of Plaintiff Bank of America, N.A. in the principal sum of \$3,024.84 and court costs of \$320.09 for a total judgment in the amount of \$3,344.93 (the “Judgment Amount”);
- Plaintiff would not request that Judgment be entered so long as Defendant is not in default with the payment plan set forth in this Settlement Agreement; and
- Defendant agrees to pay to Plaintiff a minimum of \$170.00 on or before the 30th day of each and every month commencing on September 30, 2024, through and including March 30, 2026, and then a final payment of \$114.93 on or before April 30, 2026, until the Defendant has paid the Judgment Amount.

- If Defendant defaults by failing to make full and timely payment of any installment, then the full remaining balance shall be due, and Plaintiff shall be entitled to enter Judgment for the \$3,344.93 Judgment Amount, plus court costs and motion filing fees incurred in moving for entry of Judgment, less credit for payments made.

Settlement Agreement at ¶¶ 1, 3, 4.

After reviewing the November 13, 2024 Settlement Agreement, the Court in an Order filed on November 21, 2024 dismissed this case without prejudice while retaining jurisdiction to enforce the terms of the Settlement Agreement under Code of Civil Procedure Section 664.6 (the “November 21, 2024 Dismissal”).

ANALYSIS OF THE MOTION

While Defendant did make some installment payments totaling \$1,530.00, for which he is entitled to credit, Defendant defaulted by stopping making any further installing payments before the \$3,344.93 Judgment Amount was paid in full. Declaration of Attorney Michael Mallonga In Support of Motion (“Mallonga Decl.”) at ¶¶ 6 & 7 and Ex. 2 thereto.

As Defendant defaulted on payments that he owed Plaintiff under the Settlement Agreement, Plaintiff asks the Court to enter Judgment against Defendant now in the total amount of **\$2,138.40**, which equals:

- the principal sum of \$3,024.84,
- plus previous court costs of \$320.09, \$18.47 e-filing fee, \$245.00 Order fee and \$60.00 motion fee for the filing of this Motion,
- less payments of \$1,530.00 made by Defendant to Plaintiff to date.

Mallonga Decl. at ¶ 7.

The Court finds the Motion to be well grounded in law, well supported in fact and evidence by the Supporting Declaration of Michael Mallonga and its Exhibits, and reasonable in all respects.

Moreover, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

CONCLUSION & ORDER

For all the reasons set forth above, **Plaintiff's Motion is GRANTED.**

Specifically, the Court **ORDERS** that:

1. the November 21, 2024 Dismissal is **VACATED**;
2. the November 13, 2024 Settlement Agreement signed by the parties under C.C.P. Section 664.6 is **ENFORCED**; and
3. **JUDGMENT IS ENTERED** now in favor of Plaintiff Bank of America, N.A. and against Defendant Anthony Snyder in the total amount of **\$2,138.40.**

SO ORDERED.

Date: August 7, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

JUDGMENT

Plaintiff's Motion for an Order Setting Aside and Vacating the Court's November 21, 2024 Order of Dismissal, and for Entry of Judgment in favor of Plaintiff Bank of America, N.A. and against Defendant Anthony Snyder pursuant to Stipulation of the parties, came regularly for a hearing by the Court on August 7, 2026, on notice duly given. After reviewing all the papers and giving counsel for all parties the opportunity to be heard, the Court **GRANTS THE MOTION.**

ACCORDINGLY, IT IS SO ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiff Bank of America, N.A. have and recover now from Defendant Anthony Snyder a **Total Judgment in the amount of \$2,138.40**, which equals: (a) the principal sum of \$3,024.84, *plus* (b) previous court costs of \$320.09, \$18.47 e-filing fee, \$245.00 Order fee and \$60.00 motion fee for the filing of this Motion, *less* (c) payments of \$1,530.00 made by Defendant to Plaintiff to date.

Date: August 7, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *First Resolution Investment Corp. v. Richard J. Torres*

Case No.: 2008-1-CV-131533

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Assignee River Heights Capital LLC (“Assignee”) moves under Code of Civil Procedure Section 473(b) to vacate the Judgment entered on April 14, 2009 and the Renewal of Judgment filed on March 26, 2019 against Defendant Richard J. Torres (“Defendant”) and to dismiss the case with prejudice on the grounds that Defendant was a victim of identity theft and fraud. Notice of Motion (the “Motion”) at 1:21-27 (filed: Jan. 15, 2026).

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. The Court has considered the moving papers, including the Declaration of Robert J. Colclough, III in Support of the Motion (“Colclough Decl.”) and its supporting evidentiary exhibit, as well as the Memorandum of Points and Authorities in Support of the Motion. No Opposition has been filed by any party. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

PROCEDURAL HISTORY

On April 14, 2009, Judgment was entered in favor of Plaintiff First Resolution Investment Corp. against Defendant Richard J. Torres, an individual, in the amount of \$2,370.98. Colclough Decl. at ¶ 3; Abstract of Judgment. On March 26, 2019, the Judgment was renewed in the amount of \$4,744.03. Colclough Decl. at ¶ 3; Abstract of Judgment.

By a filing in this action on April 22, 2025, Assignee River Heights Capital LLC was assigned all title, right, and interest in the judgment by the original Judgment creditor First Resolution Investment Corp. Assignment of Judgment (filed: April 22, 2025).

Now River Heights Capital LLC, as Assignee, moves under California Code of Civil Procedure section 473(b) to vacate the Judgment entered on April 14, 2009, and the Renewal of Judgment filed on March 26, 2019, and to dismiss the case with prejudice on the grounds that Defendant was a victim of identity theft and fraud. Motion at 1:20-27; Mem. in Supp. of Mot. to Vacate J. at 3:19-23.

FACTUAL BACKGROUND

On or about January 13, 2026, counsel for Assignee became aware that Defendant Richard J. Torres was a victim of identity theft and fraud. Colclough Decl. at ¶ 4. Counsel for Assignee received certified mail from Consumer Law Center, Inc., dated October 11, 2017, advising that the law firm represents Defendant Richard Jonathan Torres in this matter. *Id.* ¶ 5 & Ex. 1 thereto. The letter stated that the debt is not the Defendant Torres's debt and that he is a victim of identity theft. *Id.* The letter explained that an unknown person or persons opened the Washington Mutual Bank credit account underlying this lawsuit using Mr. Torres's personal information without his knowledge or consent. *Id.* The letter enclosed a San Jose Police Report, Sunnyvale Police Report, and a completed and notarized Federal Trade Commission Identity Theft Affidavit. *Id.*

LEGAL STANDARD

California Code of Civil Procedure section 473(b) provides that "[t]he court may, upon any terms that may be just, relieve a party or his legal representative from a judgment, dismissal or order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Mem. in Supp. of Mot. to Vacate J. at 4:2-3. Under section 473(b), this Court has the authority and discretion to vacate the Judgment entered on April 14, 2009, and the Renewal of Judgment filed on March 26, 2019, and to dismiss this case with prejudice. *Id.* at 4:7-14.

ANALYSIS OF THE MOTION

In the broad exercise of its discretion, the Court finds the Motion to be well grounded in law, well supported in fact and evidence by the Supporting Declaration of Robert J. Colclough, III, and its Exhibits, and reasonable in all respects. The evidence presented demonstrates that Defendant was a victim of identity theft and that the Judgment was entered based on a debt arising from a credit account opened by an unknown person using Defendant's personal information without his knowledge or consent. Colclough Decl. at ¶ 5. The Assignee, as the current holder of the Judgment, quite reasonably seeks this relief from the Judgment after recognizing this identity theft.

Given the uncontroverted evidence that Defendant was a victim of identity theft, and in the interests of justice, the Court finds that relief under Code of Civil Procedure section 473(b) is warranted.

Moreover, no party has opposed the Motion, which the Court views as all parties conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

CONCLUSION & ORDER

This Motion to Vacate the Judgment, Renewal of Judgment and Dismiss the Case with Prejudice is **GRANTED** in its entirety.

Specifically, the Court **ORDERS** that:

1. The Judgment entered on April 14, 2009, in favor of First Resolution Investment Corp. against Richard J. Torres, an individual, is **VACATED**;
2. The Renewal of Judgment filed on March 26, 2019, is **VACATED**; and
3. This case is **DISMISSED WITH PREJUDICE**.

SO ORDERED.

Date: August 7, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 8

Case Name: *Remedios Domondon, et al. v. Fely P. Mabutas, et al.*

Case No.: 18CV329214

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Remedios Domondon (“Plaintiff”) moves the Court to vacate the trial date currently set for August 17, 2026 on the ground that jurisdiction remains with the appellate court because the appellate court has not yet issued its remittitur. Pl. Order to Show Cause (“OSC”) Application (the “Motion”) at 3:1-25 (filed: July 29, 2026)

The Motion came on for an OSC hearing on August 7, 2026, at 9:00 AM in Department 16, specifically on why the trial date currently set for August 17, 2026 should not be vacated on the ground that the appellate court retains jurisdiction over the matters to be tried because no remitter has been issued yet. *Id.* at 4:3-8. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

In its unpublished opinion in this action filed on May 14, 2026, the Sixth Appellate District held in its concluding paragraph: “The judgment of dismissal is reversed and the matter is remanded for an immediate trial setting. Given the age of this case, the trial court is directed *to set a trial date that is within 180 days of the issuance of the remittitur*, unless the parties stipulate to a later date under Code of Civil Procedure section 583.330.” Order at p. 20 (May 14, 2026, Sixth Appellate District, H052936, on appeal from Santa Clara County Super. Ct. No. 18CV329214) (emphasis added). Underscoring the urgency of its directive, the Sixth Appellate District in the opening paragraph of this same opinion wrote: “We reverse and remand *for an immediate trial.*” *Id.* at p. 1 (emphasis added).

In light of this appellate opinion’s directive “for an immediate trial setting,” the undersigned Judge swiftly after receiving this appellate opinion set a Trial Setting Conference on June 10, 2026, at which counsel for all parties appeared. And at that Trial Setting Conference, having in mind the appellate court’s directive “for an immediate trial,” the Undersigned Judge set trial in this case for August 17, 2026.

When the Undersigned Judge set the August 17, 2026 trial date, he assumed (in light of the urgency of the directive “for an immediate trial” in the appellate decision) that the Sixth Appellate District would issue the remittitur imminently, such that there would be no jurisdictional barrier to the trial court proceeding with this trial on August 17, 2026.

But as Plaintiffs do accurately point out in their Motion to vacate the August 17, 2026, as of today the Sixth Appellate Division has not issued the remittitur. The Undersigned Judge has personally reviewed the online appellate case docket today in